

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	
				13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ FOR PROPOSAL (RFQ) (IFB) (RFP)	
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER ☐					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
	(Use Reverse and/or Attach Additional Sheets as Necessary)				
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Continuation of Supplies or Services and Prices/Costs**Additional Information/Notes**

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	BASE PERIOD: Environmental Support Services - Sustainment For the performance of all recurring environmental compliance and waste management tasks as described in the Performance Work Statement (PWS). This includes, but is not limited to, the tasks detailed in PWS Sections 5.1 through 5.17, as well as the routine compliance activities for the RCRA Subtitle I (UST) Program (PWS 5.21) and the TSCA Program (PWS 5.22). This CLIN specifically EXCLUDES: The periodic Groundwater Monitoring Event (PWS 5.19), which is priced under its own separate CLIN. The annual Service Contract Reporting (SCR) requirement (PWS 5.18), which is priced under its own separate CLIN. This term will be 11 months in duration. NOTE: A) For all CLINS for Environmental Support Services - Sustainment will be inspected/accepted at the Government location and by the Government. This will be reflected in the award document. B) This CLIN, and all subsequent years are expected to be funded incrementally per DFAR 252.232-7007. C) This CLIN and all subsequent CLINS are subject to the availability of funding per FAR 52.232-18.	11	Months		

	Service Rendered: Environmental Services Pricing Arrangement: Firm Fixed Price				
0002	Reporting Requirements for Contracted Services: For the preparation and submission of all required annual contract reports. This Firm-Fixed-Price shall cover all costs associated with fulfilling the Service Contract Reporting (SCR) for manpower and labor hours in accordance with PWS Section 5.18, as well as any applicable reporting required under DFARS 252.204-7023. Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 0003	Groundwater Monitoring Event (Optional) For the performance of one (1) complete Groundwater Monitoring Event, as described in PWS Section 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, if included in the contract. Service Rendered: GMA Pricing Arrangement: Firm Fixed Price	1	Each		
0004	Phase-In (FFP) For all costs associated with the 30-day phase-in period in accordance with PWS Section 1.5. This is a one-time, firm-fixed-price effort. Service Rendered: Phase In Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1001	OPTION PERIOD 1: Environmental Support Services - Sustainment For the performance of all recurring environmental compliance and waste	12	Months		

	management tasks as described in the Performance Work Statement (PWS). This includes, but is not limited to, the tasks detailed in PWS Sections 5.1 through 5.17, as well as the routine compliance activities for the RCRA Subtitle I (UST) Program (PWS 5.21) and the TSCA Program (PWS 5.22). Service Rendered: Environmental Services Pricing Arrangement: Firm Fixed Price				
Option Line Item 1002	Reporting Requirements for Contracted Services: For the preparation and submission of all required annual contract reports. This Firm-Fixed-Price shall cover all costs associated with fulfilling the Service Contract Reporting (SCR) for manpower and labor hours in accordance with PWS Section 5.18, as well as any applicable reporting required under DFARS 252.204-7023. Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1003	Groundwater Monitoring Event (Optional) For the performance of one (1) complete Groundwater Monitoring Event, as described in PWS Section 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, if included in the contract. Service Rendered: GMA Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 2001	OPTION PERIOD 2: Environmental Support Services - Sustainment For the performance of all recurring environmental compliance and waste	12	Months		

	management tasks as described in the Performance Work Statement (PWS). This includes, but is not limited to, the tasks detailed in PWS Sections 5.1 through 5.17, as well as the routine compliance activities for the RCRA Subtitle I (UST) Program (PWS 5.21) and the TSCA Program (PWS 5.22). Service Rendered: Environmental Services Pricing Arrangement: Firm Fixed Price				
Option Line Item 2002	Reporting Requirements for Contracted Services: For the preparation and submission of all required annual contract reports. This Firm-Fixed-Price shall cover all costs associated with fulfilling the Service Contract Reporting (SCR) for manpower and labor hours in accordance with PWS Section 5.18, as well as any applicable reporting required under DFARS 252.204-7023. Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 2003	Groundwater Monitoring Event (Optional) For the performance of one (1) complete Groundwater Monitoring Event, as described in PWS Section 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, if included in the contract. Service Rendered: GMA Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 3001	OPTION PERIOD 3: Environmental Support Services - Sustainment For the performance of all recurring environmental compliance and waste	12	Months		

	management tasks as described in the Performance Work Statement (PWS). This includes, but is not limited to, the tasks detailed in PWS Sections 5.1 through 5.17, as well as the routine compliance activities for the RCRA Subtitle I (UST) Program (PWS 5.21) and the TSCA Program (PWS 5.22). Service Rendered: Environmental Services Pricing Arrangement: Firm Fixed Price				
Option Line Item 3002	Reporting Requirements for Contracted Services: For the preparation and submission of all required annual contract reports. This Firm-Fixed-Price shall cover all costs associated with fulfilling the Service Contract Reporting (SCR) for manpower and labor hours in accordance with PWS Section 5.18, as well as any applicable reporting required under DFARS 252.204-7023. Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 3003	Groundwater Monitoring Event (Optional) For the performance of one (1) complete Groundwater Monitoring Event, as described in PWS Section 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, if included in the contract. Service Rendered: GMA Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4001	OPTION PERIOD 4: Environmental Support Services - Sustainment For the performance of all recurring environmental compliance and waste	12	Months		

	management tasks as described in the Performance Work Statement (PWS). This includes, but is not limited to, the tasks detailed in PWS Sections 5.1 through 5.17, as well as the routine compliance activities for the RCRA Subtitle I (UST) Program (PWS 5.21) and the TSCA Program (PWS 5.22). Service Rendered: Environmental Services Pricing Arrangement: Firm Fixed Price				
Option Line Item 4002	Reporting Requirements for Contracted Services: For the preparation and submission of all required annual contract reports. This Firm-Fixed-Price shall cover all costs associated with fulfilling the Service Contract Reporting (SCR) for manpower and labor hours in accordance with PWS Section 5.18, as well as any applicable reporting required under DFARS 252.204-7023. Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4003	Groundwater Monitoring Event (Optional) For the performance of one (1) complete Groundwater Monitoring Event, as described in PWS Section 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, if included in the contract. Service Rendered: GMA Pricing Arrangement: Firm Fixed Price	1	Each		

Continuation of Description

Requirements

Environmental Support Services

0001

Product Service Code : F108

North American Industry Classification System (NAICS) : 562112

0002

Product Service Code : F108

0004

Product Service Code : F108

North American Industry Classification System (NAICS) : 562112

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
0002	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 0003	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA

	W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
0004	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: Per PWS

	DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 1003	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item	Inspection and Acceptance Location

2002	Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 2003	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES

Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 3003	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000

	UNITED STATES
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES
Option Line Item 4003	Inspection and Acceptance Location Both Destination Instructions: Per PWS DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES

Continuation of Deliveries or Performance

0001	Delivery Schedule Delivery Period From 22 Sep 2026 to 21 Aug 2027 Quantity 11 Months Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Sep 2026 To 21 Aug 2027
0002	Delivery Schedule Delivery Period From 22 Aug 2026 to 21 Aug 2027 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance

	From 22 Aug 2026 To 21 Aug 2027
Option Line Item 0003	Delivery Schedule Delivery Period From 22 Aug 2026 to 21 Aug 2027 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2026 To 21 Aug 2027
0004	Delivery Schedule Delivery Period From 22 Aug 2026 to 21 Sep 2026 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES

	Period of Performance From 22 Aug 2026 To 21 Sep 2026
Option Line Item 1001	Delivery Schedule Delivery Period From 22 Aug 2027 to 21 Aug 2028 Quantity 12 Months Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2027 To 21 Aug 2028
Option Line Item 1002	Delivery Schedule Delivery Period From 22 Aug 2027 to 21 Aug 2028 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA

	W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2027 To 21 Aug 2028
Option Line Item 1003	Delivery Schedule Delivery Period From 22 Aug 2027 to 21 Aug 2028 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2027 To 21 Aug 2028
Option Line Item 2001	Delivery Schedule Delivery Period From 22 Aug 2028 to 21 Aug 2029 Quantity 12 Months Address and POC

	Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2028 To 21 Aug 2029
Option Line Item 2002	Delivery Schedule Delivery Period From 22 Aug 2028 to 21 Aug 2029 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2028 To 21 Aug 2029
Option Line Item	Delivery Schedule Delivery Period From 22 Aug 2028 to 21 Aug 2029

2003	Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2028 To 21 Aug 2029
Option Line Item 3001	Delivery Schedule Delivery Period From 22 Aug 2029 to 21 Aug 2030 Quantity 12 Months Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2029 To 21 Aug 2030

Option Line Item 3002	Delivery Schedule Delivery Period From 22 Aug 2029 to 21 Aug 2030 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2029 To 21 Aug 2030
Option Line Item 3003	Delivery Schedule Delivery Period From 22 Aug 2029 to 21 Aug 2030 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2029

	To 21 Aug 2030
Option Line Item 4001	Delivery Schedule Delivery Period From 22 Aug 2030 to 21 Aug 2031 Quantity 12 Months Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES Period of Performance From 22 Aug 2030 To 21 Aug 2031
Option Line Item 4002	Delivery Schedule Delivery Period From 22 Aug 2030 to 21 Aug 2031 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022-5000 UNITED STATES

	Period of Performance From 22 Aug 2030 To 21 Aug 2031
Option Line Item 4003	Delivery Schedule Delivery Period From 22 Aug 2030 to 21 Aug 2031 Quantity 1 Each Address and POC Place of Performance DoDAAC: W906AM CountryCode: USA W6B6 USA GARRISON DUGWAY SERVICE CONTRACTS ONLY, BLDG 5464 STARK ROAD DUGWAY, UT 84022- 5000 UNITED STATES Period of Performance From 22 Aug 2030 To 21 Aug 2031

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-3	Gratuities.	1984-04		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	2020-06	Alternate I	2021-11
52.203-13	Contractor Code of Business Ethics and Conduct.	2021-11		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	2026-02		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-	2026-02		

O0038)

52.219-8	Utilization of Small Business Concerns. (Deviation 2026-O0038)	2026-02
52.219-33	Nonmanufacturer Rule. (Deviation 2026-O0038)	2026-02
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	2026-02
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	2026-02
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	2026-02
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038)	2026-02
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (Deviation 2026-O0038)	2026-02
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02
52.222-54	Employment Eligibility	2026-02

	Verification. (Deviation 2026-00038)			
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-00038)	2026-02		
52.224-3	Privacy Training. (Alternate I)	2017-01	Alternate I	2017-01
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03		
52.233-3	Protest after Award. (Deviation 2026-00038)	2026-02		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-00038)	2026-02		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	2011-09		

252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7004	Antiterrorism Awareness Training for Contractors.	2023-01		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	2024-05	Deviation 2024- O0013	2024-05
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.204-7022	Expediting Contract Closeout.	2021-05		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	2024-10		
252.225-7012	Preference for Certain Domestic Commodities.	2022-04		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	2023-06		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	2023-01		
252.232-7003	Electronic Submission of	2018-12		

Payment Requests and
Receiving Reports.

252.232-7010	Levies on Contract Payments.	2006-12
252.243-7002	Requests for Equitable Adjustment.	2022-12
252.247-7023	Transportation of Supplies by Sea.	2024-10

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Terms and Conditions-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government

must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered;
and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall-

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.

C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment-

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved

beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon-

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate

assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records,

materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.219-14	Limitations on Subcontracting.	2026-02
	(Deviation 2026-O0038)	

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (*e.g.*, for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability*. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to

subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

X By the end of the base term of the contract and then by the end of each subsequent option period; or

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions. (Tailored)	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order: **CONTRACT NUMBER TBD**

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s): **INVOICE 2 IN 1**

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit the invoice 2in1.

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	HQ0490
Issue By DoDAAC	W911S6
Admin DoDAAC	W911S6
Inspect By DoDAAC	W906AM
Ship To Code	W906AM

Ship From Code	_____
Mark For Code	_____
Service Approver (DoDAAC)	W906AM
Service Acceptor (DoDAAC)	W906AM

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

COR: TBA

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-9	Personal Identity Verification of Contractor Personnel.	2011-01		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.222-3	Convict Labor. (Deviation 2026-O0038)	2026-02		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02		
52.226-7	Drug-Free Workplace.	2024-05		
52.228-5	Insurance-Work on a Government Installation.	1997-01		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	1984-04		
52.237-3	Continuity of Services.	1991-01		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation 2026-O0038)	2026-02		

52.244-6 Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038) 2026-02

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	1991-12		
252.203-7004	Display of Hotline Posters.	2023-01		
252.204-7000	Disclosure of Information.	2016-10		
252.204-7023	Reporting Requirements for Contracted Services.	2021-07		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	2014-09		
252.226-7003	Drug-Free Work Force.	2024-08		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.239-7001	Information Assurance Contractor Training and Certification.	2008-01		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	2026-02	Deviation 2026-O0025	2026-02

252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-00015)	2026-02	Deviation 2026-00015	2026-01
--------------	---	---------	----------------------	---------

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
--------	-------	----------------	---------------------	--------------------------

52.217-8	Option to Extend Services.	1999-11		
----------	----------------------------	---------	--	--

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of clause)

52.217-9	Option to Extend the Term of the Contract.	2000-03		
----------	--	---------	--	--

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 5 years and 6 months.

(End of clause)

52.252-2 Clauses Incorporated by 1998-02
Reference.

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

www.acquisition.gov

(End of clause)

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.208-7999	Ordering From Government Supply Sources. (DEVIATION 2026-O0049)	2026-03	Deviation 2026-O0049	2026-03

ORDERING FROM GOVERNMENT SUPPLY SOURCES (DEVIATION 2026-O0049) (MAR 2026)

(a) When placing orders under Federal Supply Schedules, Personal Property Rehabilitation Price Schedules, or Enterprise Software Agreements, the Contractor shall follow the terms of the applicable schedule or agreement and authorization. Include in each order:

(1) A copy of the authorization (unless a copy was previously furnished to the Federal Supply Schedule, Personal Property Rehabilitation Price Schedule, or Enterprise Software Agreement contractor).

(2) The following statement:

Any price reductions negotiated as part of an Enterprise Software Agreement issued under a Federal Supply Schedule contract shall control. In the event of any other inconsistencies between an Enterprise Software Agreement, established as a Federal Supply Schedule blanket purchase agreement, and the Federal Supply Schedule contract, the latter shall govern.

(3) The completed address(es) to which the Contractor's mail, freight, and billing documents are to be directed.

(b) When placing orders under nonmandatory schedule contracts and requirements contracts, issued by the General Services Administration (GSA) Office of Information Resources Management, for automated data processing equipment, software and maintenance, communications equipment and supplies, and teleprocessing services, the Contractor shall follow the terms of the applicable contract and the procedures in paragraph (a) of this clause.

(c) When placing orders for Government stock on a reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization, using FEDSTRIP or MILSTRIP procedures, as appropriate;

(2) Use only the GSA Form 1948-A, Retail Services Shopping Plate, when ordering from GSA Self-Service Stores;

(3) Order only those items required in the performance of Government contracts; and

(4) The Contractor shall pay invoices from Government supply sources promptly.

(A) The Contractor shall pay purchases made from DoD supply sources within 30 days of the date of a proper invoice.

(B) The Contractor shall annotate each invoice with the date of receipt.

(C) For the purposes of computing interest for late Contractor payments, the Government's invoice is deemed to be a demand for payment in accordance with the Interest clause of this contract.

(D) If the Contractor fails to pay or pays late that may also result in the DoD supply source refusing to honor the requisition (see DFARS 208-105-2(a)(4)(ii)) or in the Contracting Officer terminating the Contractor's authorization to use DoD supply sources.

(1) In the event the Contracting Officer decides to terminate the authorization due to the Contractor's failure to pay in a timely manner, the Contracting Officer will provide the Contractor with prompt written notice of the intent to terminate the authorization and the basis for such action.

(2) The Contractor shall have 10 days after receipt of the Government's notice in which to provide additional information as to why the authorization should not be terminated.

(3) Any such termination does not provide the Contractor with an excusable delay for failure to perform or complete the contract in accordance with the terms of the contract, and the Contractor shall be solely responsible for any increased costs.

(d) When placing orders for Government stock on a non-reimbursable basis, the Contractor shall--

(1) Comply with the requirements of the Contracting Officer's authorization; and

(2) When using electronic transactions to submit requisitions on a nonreimbursable basis only, place orders by authorizing contract number using the Defense Logistics Management System (DLMS) Supplement to Federal Implementation Convention 511R, Requisition; and acknowledge receipts by authorizing contract number using the DLMS Supplement 527R, Receipt, Inquiry, Response and Material Receipt Acknowledgement.

(e) Only the Contractor may request authorization for subcontractor use of Government supply sources. The Contracting Officer will not grant authorizations for subcontractor use without approval of the Contractor.

(f) Government invoices will be submitted to the Contractor's billing address, and Contractor payments shall be sent to the Government remittance address specified below:

Contractor's Billing Address (include point of contact and telephone number):

[To be determined at contract award]

Government Remittance Address (include point of contact and telephone number):

[To be determined at contract award]

(End of clause)

252.232-7007	Limitation of Government's Obligation.	2014-04
--------------	---	---------

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

(a) Contract line item(s) 0001,1001 2001, 3001, 4001, is/are incrementally funded.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

Date: As funds become available.

Amount: To be incorporated via contract modification

List of Contract Documents, Exhibits, or Attachments

The attachments listed in this Section are incorporated by reference and made part of this contract with the same force and effect as if included in full text.

*** END OF NARRATIVE ***

Identifier	Document Name	Document Description	Reference Identifier	Date	Line Item	Page Numbers	Document Type	Provided Under Separate Cover
0001	PWS ENV Support DPG Revised 4- 28 Amendme nt 0001	Performance Work Statement		28 Apr 2026			Attachment	No
0002	Revised Technical Exhibit 1 - Facilities Map	Supporting Technical Documentation		28 Apr 2026			Attachment	No
0003	TE-2 90-Day Storage Sites	Supporting Technical Documentation		20 Apr 2026			Attachment	No
0004	TE-3 Generator Training Requirements	Supporting Technical Documentation		20 Apr 2026			Attachment	No
0005	TE- 4 Groundwater Monitoring Program (GMP)	Supporting Technical Documentation		20 Apr 2026			Attachment	No
0006	TE-5 DPG UST LUST Management	Supporting Technical Documentation		20 Apr 2026			Attachment	No
0007	Attachment 1 - Price Proposal Spreadsheet	Proposal		21 Apr 2026			Attachment	No
0008	Attachment 2 Past Performance References	Attachment 2 - Past Performance References		21 Apr 2026			Attachment	No

0009	Attachment 03 - Past Performan ce PPQ	Attachment 3 Past Performance Questionnaire		29 Apr 2026			Attachment	No
0010	Attachment 4 - DoL A rea Wage D eterminati on	Wage Determination	Attachmen t 4 - DoL Wage Det ermination	21 Apr 2026			Attachment	No
0011	ANTITERROR ISM_OPERAT IONS SECUR ITY REQUIR EMENTS	Antiterrorism / Operations Security Requirements		20 Apr 2026			Attachment	No
0012	DPG Visito r Guide	DPG Visitor Guide		20 Apr 2026			Attachment	No
0013	Local Site Informati on - DPG	Local Site Information		20 Apr 2026			Attachment	No

Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region- Representation.	2023-06
--------------	--	---------

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05		

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

ADDENDUM TO FAR 52.212-1 (DFARS CD 2026-O0028): INSTRUCTIONS TO OFFERORS-- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

PART I: GENERAL INFORMATION

A. Source Selection and Solicitation Information

1. Source Selection Methodology

- a. The selection of a source for this award will be conducted utilizing negotiated procedures in accordance with FAR Part 15 (DFARS CD 2026-O0048). This acquisition is for a commercial service under FAR Part 12 (DFARS CD 2026-O0028), and the evaluation factors for award are specified in the Addendum to FAR 52.212-2 (DFARS CD 2026-O0028) of this solicitation.
- b. The Government will use a Lowest Price Technically Acceptable (LPTA) source selection methodology as described in FAR 15.103-2 (DFARS CD 2026-O0048). The award will be made to the responsible offeror whose proposal is determined to be technically acceptable and has the lowest evaluated price. Tradeoffs between price and non-price factors will not be made.
- c. Noncompliance with the material requirements of this Request for Proposal (RFP) will result in the proposal being rated "Unacceptable" and therefore ineligible for award.
- d. Set-Aside: This acquisition is a 100% Total Small Business Set-Aside. The associated North American Industry Classification System (NAICS) code is 562112 Hazardous Waste Collection, and the small business size standard is \$47M.

2. Solicitation Inquiries and Point of Contact

- a. Offerors are responsible for carefully reviewing all terms and conditions of this RFP.
- b. All questions regarding this solicitation shall be submitted in writing via email to the Contract Specialist, Amy Eilerts, at amy.m.eilerts.civ@army.mil. The subject line of the email should include the solicitation number. Should an offeror believe the solicitation contains an error or ambiguity, they shall immediately notify the Contracting Officer in writing.
- c. The deadline for receipt of questions is **10:00 AM MDT on Monday, 11 May 2026**. Questions received after this deadline may not be answered.

d. All questions and the Government's official answers will be published in a formal amendment to the solicitation and posted to the Government Point of Entry (SAM.gov).

3. Site Visit

a. Purpose and Schedule: A Site Visit is scheduled for **10:00 AM MDT on Monday, 4 May 2026**. Offerors are urged and expected to inspect the site to satisfy themselves regarding all general and local conditions that may affect contract performance. Failure to inspect the site shall not constitute grounds for a claim after contract award.

b. Registration (Mandatory): Interested offerors shall register for the site visit by contacting Amy Eilerts, Contract Specialist, at amy.m.eilerts.civ@army.mil no later than **1:00 PM MDT on Wednesday, 29 April 2026**. The registration email is required for access to the e-Advance Visitor Pre-registration system and must include the following information for each attendee:

1. Full Name (Last, First, Middle)
2. Company Name
3. Phone #
4. US Citizen (Yes/No)
5. Date of Birth (DOB)
6. Driver's License Number and State of Issue
7. Indicate if you are a current CAC Holder (Yes/No)

c. Day of Visit and Access Requirements]

- Attendees are advised to arrive at the Dugway Proving Ground (DPG) Visitor Control Center no later than 9:30 AM MDT to allow for processing. The Visitor Control Center opens at 7:00 AM MDT.
- After badging, a general introduction will take place at MICC-DPG, 5330 Valdez Circle.
- Drivers must present a current vehicle registration, valid driver's license, and proof of insurance. All vehicles are subject to search at any time on the installation. All visitors may be subject to an Interstate Identification Index (III) Background Check. Adverse information may result in denial of access.

d. Disclaimer: Questions will not be formally answered during the site visit; all questions, including those arising from the site visit, must be submitted in writing in accordance with the 'Solicitation Inquiries and Questions' section above. The official Government response to all questions will be published as a formal solicitation amendment.

4. Acceptance of Terms and Intent to Award

- a. Submission of a proposal constitutes the offeror's acceptance of all terms and conditions of the RFP.
- b. It is the Government's intention to award without discussions. Offerors are encouraged to ensure their initial proposal meets all technical requirements at an acceptable level and provides their best price. The Government reserves the right to hold discussions in accordance with FAR 15.306 (DFARS CD 2026-O0048) if necessary.

5. Debriefings

- a. The Contracting Officer (KO) will promptly notify offerors in writing of any decision to exclude them from the competitive range, whereupon they may request and receive a preaward debriefing in accordance with FAR 15.206-2 (DFARS CD 2026-O0048).
- b. The KO will notify unsuccessful offerors in the competitive range of the award decision in accordance with FAR 15.207-2 (DFARS CD 2026-O0048), after which they may request and receive a postaward debriefing in accordance with FAR 15.301 (DFARS CD 2026-O0048).

B. Proposal Submission and Formatting

1. Proposal Submission

- a. Proposals shall be submitted electronically prior to the closing date and time specified in Block 8 of the SF 1449 (**no later than 10:00 AM MDT on 26 May 2026.**) Email submission is preferred.
- b. Submission Email: amy.m.eilerts.civ@army.mil
- c. Submission Format: Each proposal volume shall be a separate, single, searchable Adobe PDF file with a cover sheet identifying the volume number, title, solicitation identification, and the offeror's name.

2. General Formatting and Page Limitations

- a. Volume Structure: The proposal shall consist of the three (3) volumes listed in Table 1. All volumes are required.
- b. Formatting: All text shall be single-spaced and use a 12-point, easily readable font (e.g., Times New Roman or Arial).
- c. Page Limitations: The content of the volumes must adhere to the page limits in Table 1.

Pages submitted in excess of the specified limit will not be evaluated.

d. Indexing and Glossary: Each volume shall contain a detailed table of contents with corresponding bookmarks. A master glossary shall be included in Volume II.

TABLE 1:

VOLUME	TITLE	PAGE LIMITS
I	Price/General	15
II	Mission Capability	30
III	Past Performance	30

3. Exceptions and Revisions

- a. Taking exception to a material requirement of the RFP will lead to the proposal being rejected as technically unacceptable.
- b. The Government will not consider unsolicited proposal revisions after the closing date. Late proposals, modifications, or revisions are governed by FAR 52.212-1(c) (DFARS CD 2026-O0028). and FAR 15.107(b) (DFARS CD 2026-O0048).

PART II: PROPOSAL CONTENT INSTRUCTIONS BY VOLUME

A. Volume I: Price/General

SF 1449 and Offeror Information: Submit a completed SF 1449, signed by an official authorized to obligate the offeror. Acknowledge all amendments. Provide the name, title, and telephone number of the official(s) authorized to conduct negotiations.

Assumptions: The proposal shall clearly identify any assumptions made during its preparation. However, assumptions shall not take exception to or conflict with any material requirement of this solicitation. Any assumption that creates such a conflict will cause the proposal to be rated "Unacceptable."

Price Proposal Instructions: Propose a single, all-inclusive Firm-Fixed-Price (FFP) for each CLIN as structured in Attachment 01, "Price Proposal Spreadsheet." The evaluation will be

based on the Total Evaluated Price (TEP). No cost element breakdown (e.g., labor categories, overhead, profit) is required or permitted. All cells intended for offeror input must be completed; a blank cell or "N/A" may result in the proposal being determined incomplete and ineligible for award.

a. **Price Proposal Spreadsheet:** Complete the SF 1449 and Attachment 01 (Price Proposal Spreadsheet) by entering the FFP where prompted. The structure, formulas, and format of the spreadsheet shall not be modified by the offeror.

b. **CLIN Structure (Table 1: Core Services):**

(1) **Phase-In Period (CLIN 0004):** Propose a single FFP for the complete 30-day Phase-In period.

(2) **Environmental Support Sustainment (CLIN X001):** Propose a separate monthly FFP for the 11-month Base Term and each 12-month Option Terms. This price shall include all recurring core tasks (PWS 5.1-5.17) as well as recurring UST and TSCA compliance activities (PWS 5.20-5.22).

(3) **Reporting Requirements for Contracted Services (SCR CLIN X002):** Propose a separate single FFP for fulfilling the annual SCR requirement (PWS 5.18) and any applicable reporting under DFARS 252.204-7023 for each period. This cost shall NOT be included within the Environmental Support Sustainment CLINs. Offerors may not propose this line item as Not Separately Priced (NSP).

(4) **6-Month Extension (-8 EXT):** Offerors shall NOT enter a price for the 6-month extension of services. This cell is formula-driven and will automatically calculate a total based on exactly one-half (1/2) of the proposed Option Period 4 Sustainment and SCR pricing.

c. **CLIN Structure (Table 2: Optional Events):**

(1) **Groundwater Monitoring Event (CLIN X003)** Propose a separate single FFP for one (1) complete Groundwater Monitoring Event for the Base period and each Option period as described in PWS 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, and will only be exercised if and when the event is required.

(Note for Evaluation: The spreadsheet will automatically average the five proposed prices to generate a single "Evaluation Price" to prevent artificially inflating the total contract evaluation value).

d. **Total Price, Billing, and Funding (Table 3: TEP Summary):**

The Total Evaluated Price (TEP) on the spreadsheet (Table 3) is a mathematical representation used for evaluation purposes only and will auto-calculate based on inputs in Tables 1 and 2. The total proposed price for the base and option periods must match the SF 1449. The contract may be incrementally funded. Annual service CLINs shall be invoiced in equal monthly installments; event-driven efforts (like Groundwater) shall be invoiced upon completion and acceptance.

(1) CLINs X001 Series - Environmental Support Sustainment: Propose a separate single FFP for the 11-month Base Term and each 12-month Option Term. This price shall include all recurring core tasks (PWS 5.1-5.17) as well as recurring UST and TSCA compliance activities (PWS 5.20-5.22).

(2) CLINs X002 Series - Reporting Requirements for Contracted Services: Propose a separate single FFP for fulfilling the annual SCR requirement (PWS 5.18) and any applicable reporting under DFARS 252.204-7023 for each period. This cost shall NOT be included within the Environmental Support Sustainment CLINs. Offerors may not propose this line item as Not Separately Priced (NSP).

(3) CLINs X003 Series - Groundwater Monitoring Event (Optional): Propose a separate single FFP for one (1) complete Groundwater Monitoring Event as described in PWS 5.19. This CLIN is an Option to be exercised by the Government in accordance with FAR 52.217-7, and will only be exercised if and when the event is required.

(4) CLIN 0004 - Phase-In: Propose a single FFP for the complete 30-day Phase-In period.

Representations and Certifications: Ensure your record is complete and up-to-date in SAM.gov.

SPRS Verification: The offeror shall provide a statement confirming that a NIST SP 800-171 DoD Assessment score (not older than 3 years) is currently posted in the Supplier Performance Risk System (SPRS) for all CAGE codes associated with this proposal.

B. Volume II: Mission Capability

The Mission Capability volume shall not exceed 30 pages. This volume shall provide a clear, concise, and convincing rationale demonstrating the offeror's approach to meeting all PWS requirements. Statements that the offeror understands or will comply with requirements are unacceptable. The Government will base its evaluation on the information presented in this volume. The proposal narrative shall be organized into the following sections:

Section 1: Waste Management and Permitting Approach:

Describe your detailed technical approach for all waste handling and compliance activities. Address, at a minimum:

- a. Managing the Central Hazardous Waste Storage Facility (CHWSF) in strict accordance with the Part B Permit (UT 3750211259).

- b. Executing the Waste Analysis Plan and all sampling procedures (PWS 5.3).
- c. Managing decontaminated chemical agent-related waste (PWS 5.2.3).
- d. Specific examples demonstrating corporate experience (within the last 3 years) in the classification, identification, sampling, and transportation of hazardous waste under a state-issued permit.

Section 2: Groundwater Monitoring Program Approach:

Describe your detailed technical methodology for executing a complete groundwater monitoring event (PWS 5.19). Address:

- a. Large-scale sampling across the Groundwater Management Areas (GMAs) defined in the Technical Exhibit.
- b. Laboratory data validation procedures (e.g., Stage 2/4).
- c. The preparation of complex regulatory deliverables (Field Activity Reports and GMA Evaluation Reports).

Section 3: UST and TSCA Compliance Approach:

Describe your methodology for executing the compliance programs detailed in PWS 5.20, 5.21, and 5.22. Address:

- a. Managing the recurring inspections, leak detection tests, and certification renewals for the regulated UST inventory.
- b. Your approach to TSCA-related discovery, abatement support, and sample analysis utilizing approved microscopic methods.

Section 4: Generator Training Approach:

In accordance with PWS Section 5.13, describe your detailed approach to developing and executing the comprehensive training program.

(Note: For the purposes of this contract, a "Generator" is defined as an individual or organization whose act or process produces hazardous waste). Address instructional personnel qualifications, course material development, scheduling logistics, and record tracking.

Section 5: RCRA and CAA Technical Management:

In accordance with PWS Sections 5.15 and 5.16, describe your capability to provide high-level regulatory support, including research, permit modification support, and auditing installation activities.

Section 6: Staffing, Management, and Key Personnel:

Describe your plan to organize, staff, and manage the project. Include a staffing plan, a management/QC plan, resumes for all Key Personnel demonstrating they meet PWS 1.6.10 qualifications, and signed Letters of Commitment. Include details on how personnel executing Groundwater, UST, and TSCA tasks possess the required certifications. Demonstrate how the offeror will meet the requirements of FAR 52.219-14, Limitations on Subcontracting, ensuring that at least 50 percent of the cost of contract performance incurred for personnel shall be expended for employees of the prime contractor.

Section 7: Phase-In Plan:

In accordance with PWS Section 1.6.32, provide a detailed narrative and timeline for the 30-day phase-in period.

Section 8: Cybersecurity and CUI Protection Approach:

Describe your approach to safeguarding Controlled Unclassified Information (CUI). In accordance with the recent regulatory overhaul and DFARS 252.240-7997 (Deviation 2026-O0025), the Government no longer relies solely on contractor "Basic" self-assessments for CUI protection. The offeror must provide a statement confirming that their System Security Plan (SSP) accurately reflects actual implementation, and that all evidence required to support a Government-led NIST SP 800-171 Medium or High Assessment is organized and available for Government review upon request.

C. Volume III: Past Performance

This volume shall provide documentation for the Government to assess the offeror's performance on recent and relevant contracts.

Definitions and Instructions

- a. Scope: The submission shall cover the past three (3) years and encompasses the prime offeror and all "Major Subcontractors" (defined as performing >10% of the total effort).
- b. Relevancy: A "relevant" contract is one similar in scope, complexity and magnitude, particularly concerning work under state environmental permits and large-scale environmental sampling programs.
- c. In accordance with LPTA procedures, Past Performance will be evaluated on an Acceptable/Unacceptable basis based on the offeror's record of conforming to contract

requirements and standards of good workmanship. An offeror with no record of recent, relevant past performance will receive a "Neutral" rating, which is considered "Acceptable."

Submission Requirements

- a. Section 1: Summary Page and Organizational History.
- b. Section 2: Contract References: Using Attachment 2 (Past Performance References), provide up to three (3) recent and relevant contract references for the prime and for each Major Subcontractor. Include a brief narrative explaining relevance.
- c. Section 3: Past Performance Questionnaires (PPQs): The offeror is responsible for sending Attachment 3 (Past Performance Questionnaire) to each reference and instructing them to email directly to the Contract Specialist at amy.m.eilerts.civ@army.mil. The offeror must ensure the reference clearly identifies the Offeror's name. PPQs submitted by the offeror will not be accepted.
- d. Section 4: Authorization Letters: Include consent/authorization letters from major Subcontractors and commercial clients.

*** END OF NARRATIVE ***

Evaluation - Commercial Products and Commercial Services

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Factor 1: Mission Capability

Factor 2: Past Performance

Factor 3: Price

Relative Importance: This is a Lowest Price Technically Acceptable (LPTA) source selection. Tradeoffs are not permitted. Factors 1 and 2 will be evaluated strictly on an Acceptable /Unacceptable basis. See the **Addendum to FAR 52.212-2** in this solicitation for the full, detailed evaluation criteria and Total Evaluated Price (TEP) calculation methodology.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

(a) Basis for Contract Award.

This is a Lowest Price Technically Acceptable (LPTA) source selection conducted in accordance with FAR 15.103-2 (DFARS CD 2026-O0048). Award will be made to a single responsible offeror whose proposal conforms to all solicitation requirements and represents the lowest evaluated price among those proposals determined to be technically "Acceptable." Tradeoffs between price and non-price factors are not permitted, and no additional evaluation credit will be given for exceeding the minimum mandatory requirements.

(b) Evaluation Process.

The Government intends to evaluate proposals and award a contract without discussions. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint. To expedite the evaluation process, the Government may first evaluate the Price factor to determine the lowest-priced offeror, and then evaluate that offeror's non-price factors. If the lowest-priced offeror is determined to be "Acceptable" in all non-price factors, the Government may award to that offeror without evaluating the remaining proposals. A proposal must be rated "Acceptable" for all non-price factors to be eligible for award.

(c) Evaluation Factors for Award.

The proposals will be evaluated under the following three factors:

- **Factor 1: Mission Capability**
- **Factor 2: Past Performance**
- **Factor 3: Price**

I. FACTOR 1: MISSION CAPABILITY

The Government will evaluate the offeror's Mission Capability Volume to determine if it provides a clear, feasible, and acceptable approach to meeting the Government's minimum requirements as defined in the Performance Work Statement (PWS).

The Mission Capability factor will be rated on an Acceptable / Unacceptable basis. To receive an overall rating of "Acceptable," a proposal must receive an "Acceptable" rating for all eight (8) of the following sub-factors. Failure to receive an "Acceptable" rating on any single sub-factor will result in the entire Mission Capability factor being rated "Unacceptable."

- **Acceptable:** Proposal meets the requirements of the solicitation.
- **Unacceptable:** Proposal does not meet the requirements of the solicitation.

A. Sub-factor 1: Waste Management and Permitting Approach:

To be rated "Acceptable," the proposal must detail a feasible technical methodology for

operating the CHWSF, executing the Waste Analysis Plan, and managing decontaminated chemical agent-related waste in strict compliance with the State of Utah Part B Permit. Additionally, the proposal must provide specific examples demonstrating a minimum of three (3) years of corporate experience in the classification, identification, sampling, and transportation of hazardous waste under a state-issued permit.

B. Sub-factor 2: Groundwater Monitoring Program Approach:

To be rated "Acceptable," the proposal must present a feasible, compliant approach to executing a complete groundwater monitoring event. This must include an adequate methodology for large-scale sampling across all GMAs, laboratory data validation (e.g., Stage 2 /4), and the generation of complex regulatory reports (FARs and GMA Evaluation Reports) as defined in PWS 5.19.

C. Sub-factor 3: UST and TSCA Compliance Approach:

To be rated "Acceptable," the proposal must present a credible and compliant plan for managing all recurring compliance metrics for USTs (inspections, leak detection, certification renewals) and providing TSCA support (discovery, abatement support, and sample analysis utilizing approved microscopic methods) as detailed in PWS 5.20, 5.21, and 5.22 and the associated Technical Exhibits.

D. Sub-factor 4: Generator Training Approach:

To be rated "Acceptable," the proposal must present a feasible approach to developing and executing the comprehensive training program required by PWS 5.13. The approach must adequately address instructional personnel qualifications, course material development, scheduling logistics, and record tracking.

E. Sub-factor 5: RCRA and CAA Technical Management:

To be rated "Acceptable," the proposal must demonstrate a feasible capability to perform the required RCRA and CAA technical management support, including regulatory research, permit modification drafting, and auditing of installation activities (PWS 5.15 & 5.16).

F. Sub-factor 6: Staffing, Management, and Key Personnel:

To be rated "Acceptable," the proposal must present a realistic staffing and management plan to accomplish all PWS tasks. The offeror must provide resumes and signed Letters of Commitment for all Key Personnel (Project/Site Manager, RCRA Specialist, CAA Specialist) demonstrating that each proposed individual meets the minimum education and experience qualifications stated in PWS 1.6.10. The staffing plan must also demonstrate that personnel executing Groundwater, UST, and TSCA tasks possess the necessary expertise and required certifications. Furthermore, the offeror must demonstrate a feasible plan to meet the requirements of FAR 52.219-14, Limitations on Subcontracting, ensuring at least 50% of personnel costs are expended for employees of the prime subcontractor.

G. Sub-factor 7: Phase-In Plan:

To be rated "Acceptable," the proposal must provide a detailed and feasible plan/timeline that ensures a seamless transition of services during the 30-day phase-in period without disruption to ongoing environmental compliance operations.

H. Sub-factor 8: Cybersecurity and CUI Protection:

To be rated "Acceptable," the proposal must provide a clear statement confirming that the offeror's System Security Plan (SSP) is current and accurately reflects the actual implementation of NIST SP 800-171 controls for Controlled Unclassified Information (CUI). The offeror must explicitly confirm that all evidence required to support a Government-led NIST SP 800-171 Medium or High Assessment is organized and available for Government review upon request, in accordance with DFARS 252.240-7997 (Deviation 2026-O0025).

II. FACTOR 2: PAST PERFORMANCE

The Government will evaluate the offeror's record of recent and relevant contract performance to assess the Government's confidence in the offeror's ability to successfully perform the required effort. To be considered "recent," the effort must be ongoing or have been performed during the past three (3) years from the issuance date of this solicitation. To be considered "relevant," the effort must be similar in scope, complexity, and magnitude, particularly concerning work performed under state environmental permits and large-scale environmental sampling programs.

This factor will be rated "Acceptable," "Unacceptable," or "Neutral" based on the following:

- **Acceptable:** Based on the offeror's performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort, or the offeror's performance record is unknown.
- **Unacceptable:** Based on the offeror's performance record, the Government does not have a reasonable expectation that the offeror will be able to successfully perform the required effort.

Note: In the case of an offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the offeror may not be evaluated favorably or unfavorably on past performance. Therefore, the offeror shall be determined to have unknown past performance and will receive an "Acceptable" rating.

III. FACTOR 3: PRICE

Price will not be scored or rated. The price proposals of all technically acceptable offerors will be evaluated for completeness and reasonableness in accordance with FAR 15.404-1 (DFARS CD 2026-O0048).

The Total Evaluated Price (TEP) is a mathematical representation used for evaluation purposes only and does not necessarily reflect the final contract award value. It will be calculated as the sum of:

1. The 30-Day Phase-In price.

2. All Environmental Support Sustainment and SCR Reporting CLINS for the Base Period and all four (4) Option Periods.

3. The 6-Month Extension of Services (52.217-8), calculated automatically as exactly one-half (1/2) of the Option 4 Sustainment and SCR Reporting totals.

4. An Evaluation Average for the Optional Groundwater Monitoring Event. The Government will take the sum of the five (5) proposed event prices (Base + 4 Options) and divide by five. This single averaged amount will be added to the TEP.

Note: Evaluation of options, including the 6-month extension, shall not obligate the Government to exercise said option(s).

The Government reserves the right to determine if a proposal is unacceptable due to unbalanced pricing between base and option periods, or between sustainment and optional event CLINs.

*** END OF NARRATIVE ***

Addendum to Solicitation Provisions

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	2024-09		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-00038)	2026-02		